

TOP 100 LATIN MAXIMS (Linking Laws)

1. Actus Reus non facit reum nisi mens sit rea

- Meaning: The act itself does not make a person guilty unless there is a guilty mind.

- Example: A person who accidentally kills someone while driving recklessly may not be guilty if there was no intention to harm.

2. Audi Alteram Partem

- Meaning: Hear the other side (right to a fair hearing).

- Example: Before dismissing an employee, the employer must provide the employee with an opportunity to explain.

3. Nemo Judex in Causa Sua

- Meaning: No one can be a judge in their own case.

- Example: A judge must recuse themselves from cases where they have a personal interest.

4. Res Ipsa Loquitur

- Meaning: The thing speaks for itself.

- Example: In a case where a surgeon leaves a foreign object inside a patient's body, negligence is presumed.

5. Caveat Emptor

- Meaning: Let the buyer beware.

- Example: If a person buys a used car, they cannot later sue the seller for defects if they did not inspect the car properly.

6. Ignorantia Juris Non Excusat

- Meaning: Ignorance of the law is no excuse.

- Example: A person cannot claim ignorance of the law if they break a traffic rule.

7. Volenti Non Fit Injuria

- Meaning: To a willing person, no injury is done.

- Example: If someone participates in a dangerous sport and gets injured, they cannot sue for damages.

8. Ejusdem Generis

- Meaning: Of the same kind or nature.

- Example: If a law mentions "dogs, cats, and other animals," the term "other animals" would include only animals of the same nature (domestic animals).

9. Lex Loci Delicti Commissi

- Meaning: The law of the place where the wrong was committed.

- Example: If a tort occurs in a foreign country, the laws of that country would govern the tort.

10. Nemo Dat Quod Non Habet

- Meaning: No one can give what they do not have.

- Example: A person who steals a car cannot transfer ownership of the car to someone else.

11. Ubi Jus Ibi Remedium

- Meaning: Where there is a right, there is a remedy.

- Example: If a person's property is trespassed upon, they have the legal right to seek damages or an injunction.

12. Stare Decisis et Non Quieta Movere

- Meaning: Stand by what has been decided and do not disturb settled matters.

- Example: Courts follow previous rulings (precedents) in similar cases to ensure consistency.

13. Lex Facit Regem

- Meaning: The law makes the king.

- Example: The power of the ruler is derived from the law, not personal discretion.

14. Falsus in Uno, Falsus in Omnibus

- Meaning: False in one thing, false in everything.

- Example: If a witness is proven to be lying in one part of their testimony, their entire testimony can be disregarded.

15. Pacta Sunt Servanda

- Meaning: Agreements must be kept.

- Example: If a person enters into a contract, they are legally bound to fulfill the terms.

16. Quod Ab Initio Non Valet, Postea Neque Valet

- Meaning: What is not valid from the beginning is never valid.

- Example: A contract that is void due to lack of consideration remains void even if attempted to be rectified later.

17. Sic Utere Tuo Ut Alienum Non Laedas

- Meaning: Use your property in such a manner as not to injure the property of another.

- Example: If a person builds a wall that blocks another's view, they may be liable for nuisance.

18. Qui Facit Per Alium Facit Per Se

- Meaning: He who acts through another acts himself.

- Example: A principal is liable for the actions of their agent performed in the course of their duties.

19. Mala Fides

- Meaning: Bad faith.

- Example: A person acting with dishonest intent in contract negotiations may be said to be acting in mala fide.

20. Tempus Fugit

- Meaning: Time flies.

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- Example: Statutes of limitations expire after a certain period, and legal actions cannot be initiated after that time.

21. Pactum De Non Agerendo

- Meaning: An agreement not to act.
- Example: A contract wherein one party agrees not to engage in a certain activity is enforceable.

22. Bona Fide

- Meaning: In good faith.
- Example: A bona fide purchaser of property is someone who buys without knowledge of any prior defects.

23. Ex Post Facto

- Meaning: After the fact.
- Example: Laws that make an act criminal after it has already been committed are ex post facto laws and are not allowed.

24. Caveat Venditor

- Meaning: Let the seller beware.
- Example: A seller must ensure that the goods they sell meet the terms of the contract, as they bear the risk of selling defective goods.

25. Ab Initio

- Meaning: From the beginning.
- Example: If a contract is void ab initio, it was never valid from the outset.

26. In Personam

- Meaning: Against a person.
- Example: A personal action is one directed against a specific person, such as an action for breach of contract.

27. In Rem

- Meaning: Against a thing.
- Example: A property dispute where the action is directed at the property itself, not the person.

28. Mare Liberum

- Meaning: The sea is free.
- Example: The principle that the sea is international and cannot be claimed by any one nation.

29. Quid Pro Quo

- Meaning: Something for something.

- Example: A contract where one party gives something in exchange for something else is based on quid pro quo.

30. Sub Judice

- Meaning: Under judgment.
- Example: A matter that is currently being decided by the court is said to be sub judice.

31. Ratio Decidendi

- Meaning: The reason for the decision.
- Example: The ratio decidendi of a case is the principle of law on which the decision is based.

32. Obiter Dicta

- Meaning: Things said in passing.
- Example: Statements in a judgment that are not essential to the decision but offer guidance are obiter dicta.

33. Exoneration

- Meaning: To be freed from blame or guilt.
- Example: A person who is acquitted in a criminal trial is exonerated.

34. Locus Standi

- Meaning: The right to bring an action or to be heard in a court.
- Example: A person has locus standi if they have sufficient interest in the subject matter of the case.

35. De Minimis Non Curat Lex

- Meaning: The law does not concern itself with trifles.
- Example: Courts may not entertain minor disputes that are too insignificant to warrant judicial intervention.

36. Acta Est Fabula

- Meaning: The play is over (a legal action has concluded).
- Example: When a case is finally dismissed, it can be said that the acta est fabula.

37. Consensus ad Idem

- Meaning: Agreement to the same thing.
- Example: In contract law, both parties must have a consensus ad idem to form a valid contract.

38. In Dubio Pro Reo

- Meaning: In case of doubt, favor the accused.
- Example: In criminal law, if there is any doubt regarding the guilt of the accused, they must be acquitted.

39. Jus Soli

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- Meaning: Right of the soil. - Example: A person born in a country may automatically acquire citizenship based on jus soli.	- Example: A person who commits theft with intent (mens rea) can be charged with criminal theft.
40. Jus Sanguinis - Meaning: Right of blood. - Example: A child may acquire citizenship based on their parent's nationality under the principle of jus sanguinis.	50. Causa Sui - Meaning: A person who is legally capable of managing their own affairs. - Example: A minor is not causa sui because they cannot enter into contracts on their own.
41. In Camera - Meaning: In private (court proceedings). - Example: Some court hearings, especially in family law matters, are held in camera to protect privacy.	51. Noscitur a Sociis - Meaning: A word is known by the company it keeps. - Example: In interpreting ambiguous statutes, words are given meaning based on the context in which they appear.
42. Lex Specialis Derogat Legi Generali - Meaning: A special law prevails over a general law. - Example: If there is a conflict between a specific law and a general one, the specific law takes precedence.	52. Nullum Crimen Sine Lege - Meaning: No crime without law. - Example: A person cannot be punished for an act unless it is defined as a crime in law.
43. Pecunia Non Olet - Meaning: Money does not stink. - Example: A person receiving a bribe may argue that the money is lawful even if its source is suspect.	53. Ipso Facto - Meaning: By the fact itself. - Example: If a person enters the country illegally, they are ipso facto subject to deportation.
44. Sic Utere Tuo Ut Alienum Non Laedas - Meaning: Use your property in such a way that it does not harm others. - Example: A factory should not emit toxic smoke that harms neighboring properties.	54. Ultra Vires - Meaning: Beyond the powers. - Example: A company acting ultra vires is performing actions outside its legal powers.
45. Fiat Justitia Ruat Caelum - Meaning: Let justice be done though the heavens fall. - Example: Courts must ensure justice is done, even if it leads to undesirable consequences.	55. Causa Mortis - Meaning: In contemplation of death. - Example: A gift made causa mortis is given by someone who believes they are about to die.
46. Nemo Tenetur Seipsum Accusare - Meaning: No one is bound to accuse themselves. - Example: A person cannot be forced to testify against themselves in a criminal case.	---
47. Falsus in Uno, Falsus in Omnibus - Meaning: False in one thing, false in everything. - Example: A witness who is proven to lie on one fact can have their entire testimony rejected.	56. Lex Posterior Derogat Legi Priori - Meaning: The later law repeals the earlier law. - Example: If a new law contradicts an old one, the newer law takes precedence.
48. Non Compos Mentis - Meaning: Not of sound mind. - Example: A person who is non compos mentis may not be held liable for their actions.	57. Nemo Debet Esse Judex In Propria Causa - Meaning: No one should be a judge in their own case. - Example: A judge must recuse themselves from cases where they have a personal interest.
49. Mens Rea - Meaning: Guilty mind.	58. Fidei Defensor - Meaning: Defender of the faith. - Example: A title historically given to English monarchs as protectors of the Christian faith.
	59. Jus Ad Rem - Meaning: Right to a thing.

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- Example: A person who has a claim to a property may have jus ad rem, even if they do not currently possess it.

60. Caveat Lector

- Meaning: Let the reader beware.
- Example: A warning that information or content may be misleading or unreliable.

61. In Absence

- Meaning: In the absence of.
- Example: A case may proceed in absentia if the defendant is not present in court.

62. Non Est Factum

- Meaning: It is not his deed.
- Example: A person may claim non est factum if they signed a contract under misrepresentation.

63. In Dubio Pro Reo

- Meaning: When in doubt, favor the accused.
- Example: A court must acquit a defendant if there is reasonable doubt about their guilt.

64. Testamentum Factum

- Meaning: The act of making a will.
- Example: A testamentum factum is a legally executed will.

65. Stare Decisis

- Meaning: To stand by things decided.
- Example: The principle that courts must follow precedents set by higher courts.

66. Ex Nihilo Nihil Fit

- Meaning: Nothing comes from nothing.
- Example: A contract cannot be valid unless something of value (consideration) is exchanged.

67. Bona Fide Purchaser

- Meaning: A purchaser who buys property in good faith and for value.
- Example: A person who buys stolen goods in bona fide may not be held liable.

68. Contributory Negligence

- Meaning: When the plaintiff's own negligence contributes to their harm.
- Example: If a person is injured due to a defective product but was also using the product in a reckless manner, they may be partly at fault.

69. Ex Tunc

- Meaning: From the beginning.

- Example: A contract that is declared void ex tunc is considered void from the start.

70. Ex Parte

- Meaning: On one side only.
- Example: A judge may issue an ex parte order if they believe immediate action is necessary, even if only one party is heard.

71. Nullus Commodum Capere Potest De Injuria Sua Propria

- Meaning: No one can take advantage of their own wrong.
- Example: A thief cannot profit from the stolen goods.

72. Vox Populi, Vox Dei

- Meaning: The voice of the people is the voice of God.
- Example: In a democracy, public opinion may influence laws or policies.

73. Lex In Dolo Malo Non Permittit Consilium

- Meaning: The law does not allow one to benefit from their own deceit.
- Example: A person who commits fraud cannot be allowed to benefit from it.

74. Actio Personalis Moritur Cum Persona

- Meaning: A personal action dies with the person.
- Example: If the plaintiff dies during a lawsuit, personal actions like defamation usually abate.

75. Jus Naturale

- Meaning: Natural law.
- Example: Rights that arise from human nature and reason, such as the right to life.

76. Contradictio in Terminis

- Meaning: A contradiction in terms.
- Example: A term in a contract that contradicts itself would be a contradictio in terminis.

77. Lex Non Cogit Ad Impossibilia

- Meaning: The law does not compel the impossible.
- Example: A person cannot be legally compelled to do something that is physically or practically impossible.

78. Fides Privata

- Meaning: Private faith or private trust.
- Example: A confidential relationship, such as that between a trustee and a beneficiary.

79. Ipse Dixit

- Meaning: He himself said it.
- Example: A statement that is accepted without further evidence is often called an ipse dixit.

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80. Modus Operandi

- Meaning: Method of operation.
- Example: In criminal law, the modus operandi refers to the characteristic method by which a criminal commits an offense.

81. Fiat

- Meaning: Let it be done.
- Example: A fiat issued by a judge grants permission for certain actions to take place.

82. Quasi Contract

- Meaning: An obligation imposed by law without a formal agreement.
- Example: A person who receives emergency medical care without asking for it may be liable under quasi contract to pay the doctor's fees.

83. In Fidei Commisum

- Meaning: In trust.
- Example: Property held in fidei commissum is held in trust for another person.

84. Pactum

- Meaning: A mutual agreement.
- Example: A pactum between two parties sets the terms for a contract.

85. Falsa Demonstratio Non Nocet

- Meaning: A false description does not harm.
- Example: If a contract refers to an item with an incorrect description, but the item can still be identified, the contract is still valid.

86. Res Judicata

- Meaning: A matter already judged.
- Example: Once a case has been decided and is no longer appealable, it cannot be re-litigated due to res judicata.

87. Jus Civilis

- Meaning: Civil law.
- Example: Jus civilis refers to the body of laws governing civil rights and obligations.

88. Causa Deficiente

- Meaning: Where the cause is lacking.
- Example: A contract becomes void if the cause is unlawful or non-existent.

89. Sine Die

- Meaning: Without a day (indefinitely).
- Example: A meeting that is adjourned sine die is adjourned without setting a future date.

90. Lex Loci Contractus

- Meaning: The law of the place where the contract is made.
- Example: A contract executed in India would generally be governed by lex loci contractus.

91. Caveat Venditor

- Meaning: Let the seller beware.
- Example: A seller must ensure that goods sold are fit for purpose and conform to contractual terms.

92. Ex Tunc

- Meaning: From the beginning.
- Example: An act of cancellation that has effect ex tunc renders the contract void from the beginning.

93. Nunc Pro Tunc

- Meaning: Now for then.
- Example: A court may issue an order nunc pro tunc to correct a previous mistake or oversight.

94. In Situ

- Meaning: In the place.
- Example: Goods are assessed in situ when they are inspected at their original location.

95. Locus Standi

- Meaning: The right to bring an action.
- Example: Only those with sufficient interest in a case have locus standi to sue.

96. Judex Bona Fide

- Meaning: The judge in good faith.
- Example: A judge must act bona fide, without prejudice or bias.

97. Pactum Rebus Sic Stantibus

- Meaning: A pact that remains as long as the circumstances remain unchanged.
- Example: A contract based on certain prevailing conditions might be reformed if those conditions change drastically.

98. Vexatio

- Meaning: Harassment or annoyance.
- Example: Vexatio is a term used to describe the act of repeatedly filing frivolous claims to harass another party.

99. Ad Hoc

- Meaning: For this purpose.
- Example: An ad hoc committee is formed for a specific purpose or issue and disbanded after the purpose is achieved.

100. Bonafide

- Meaning: In good faith.
- Example: A bona fide purchaser acts with honest intent without any knowledge of wrongdoing.